

DMLC-II review Questionnaire

VESSEL NAME:

[BC/GC/ MT/ LPG /RoRo/Cntnr](#)

DATE: / /

REVIEWER:

SHIPOWNER:

DMLC-I	Marine Notice (MLC)	MLC, 2006					
		Regulation /Standard	Guide-line	Before commencing review, ensure following documents have been submitted for review and approval:	ALL 11 AVAILABLE: YES / NO		
					YES	NO	
	001/2.5	5.1.3.4 A/5.1.3.10 (b) A/5.1.3.7 (d)		1.) DMLC-II?			
5	002/1.4.1 002/1.4.2	A/1.4.2 A/1.4.3		2.) Copy of SRPS Letter of Acceptance issued by Liberia; or copy of the ‘Seafarer recruitment and placement service’ (SRPS) license or certificate to operate, if available?			
4 b)	001/2.4 003/3.1.5 003/3.1.6	A/2.1.2		3.) Copy of the Collective Bargaining Agreement(s) (CBA) or ‘Conditions of Employment’ applicable to seafarers serving on the ship operated by that shipowner, (applicable sections in English)?			
4 a)	001/2.4 003/3.1	A/2.1.2		4.) Copy of the standard form of the Seafarers Employment Agreement(s) (SEA) applicable to seafarers serving on the ship operated by that shipowner, in English?			
	001/2.4 003/3.1.2	A/2.1.1(a)		5.) Where the seafarers’ employment agreement is signed by a representative of the shipowner, a copy of the manning agreement between the shipowner and the representative of the shipowner?			
15	001/2.5 003/3.6.5	2.5.2		6.) Copy of evidence of shipowners’ financial security for repatriation of seafarers? Is the certificate in English and contains the information in Appendix A2-I of MLC, 2006? To verify the validity of the certificate, please visit the respective Financial Security Provider's website and use the IMO number to confirm the validity date.			
15	001/2.5 005/3.2.2	A/4.2.1.1 (b)		7.) Copy of evidence of shipowners’ financial security to assure compensation in case of seafarer's death or long-term disability due to an occupational injury, illness or hazard? Is the certificate in English and contains the information in Appendix A4-I of MLC, 2006? To verify the validity of the certificate, please visit the respective Financial Security Provider's website and use the IMO number to confirm the validity date.			
6 a)	001/2.4 003/3.3.6	A/2.3.11		8.) Copy of the form of table of shipboard working arrangements for use on board the ship? (see MLC-003/3.3.6/3.3.9)			
6 a)	001/2.4 003/3.3.7	A/2.3.12		9.) Copy of the form of record of daily hours of rest for use on board the ship? (See MLC-003/3.3.7/3.3.9)			
12 a)	001/2.4	A/4.1.2		10.) Copy of the medical report form used by the master and relevant medical			

	005/3.1.5			personnel (on board and ashore) to help facilitate treatment of seafarers? (see MLC-005/3.1.5)			
13	001/2.4 006/ANN EX I	A/5.1.5.2	B/5.1.5 .1	11.) Copy of ship-owners on-board complaint procedures? (see MLC-006/ANNEX I)			
				Declarations by the shipowner			
	001/2.3	A/5.1.3.10 (b)	B/5.1.3 .2	Do the measures referred to in <i>each of the 16 areas</i> in the DMLC-II below include: a) The occasions on which ongoing compliance with the Administrations requirements implementing the provisions of this Convention will be verified by the shipowner? b) The records to be taken and maintained by the shipowner? c) The procedures to be followed where non-compliance is noted?			
	001/4.9			Has the shipowner submitted the declaration form for the Identification and contact details of Shipowner (manager or operator) MLC Representative or other individual with MLC responsibilities, including seafarer complaint resolution (FORM MLC-006-ANNEX I)?			
				DMLC Area 1, Minimum Age (Regulation 1.1)	Section where found in DMLC-II		
1	002/1.1.1	A/1.1.1		Does DMLC-II prohibit the employment of seafarers under the age of 16 and records the measures to ensure this ashore and on board?			
				For seafarers between the ages of 16 and 18 years:			
1	002/1.1.3	A/1.1.2		Is night defined in accordance with Liberian requirements?			
1	001/2.4 002/1.1.2	A/1.1.2 A/1.1.3		If seafarers are engaged in night work, does the DMLC-II record any training programmes in which the seafarer is engaged at night; or the work that the seafarer will perform at night or under the recognized programme? (The Administration may make an exception, if such a training programme would be impaired or if such work performed will not be detrimental to the health & well-being of seafarers) Does the DMLC-II include measures to ensure that such seafarers are made aware of this restriction before beginning work on the ship?			
1	005/3.3.4 002/1.1.4	A/1.1.4 A/4.3.2(b)		Does the DMLC-II prohibit the employment and engagement of seafarers under the age of 18 years in any hazardous work that is likely to jeopardize their health or safety? Does the DMLC-II include measures to ensure that such seafarers are made aware of this restriction before beginning work on the ship?			
1	001/2.4	A/1.1.4		Is a list of such hazardous work recorded in the DMLC-II?			
1	002/1.1.1	A/3.2.8		How does the shipowner ensure that no seafarer under the age of 18 is employed, or engaged or works as a ship's cook? Does the DMLC-II record such measures to ensure this?			
				DMLC Area 2, Medical Certification (Regulation 1.2)	Section where found in DMLC-II		
2	002/1.2.1	A/1.2.1		How does the DMLC-II ensure that all seafarers, prior to beginning work on a ship, must hold a valid medical certificate attesting that the seafarer is medically fit to perform the duties that they are to carry out at sea?			

2	002/1.2.1	A/1.2.1		How does the DMLC-II ensure that medical fitness examinations will only be carried out by a duly qualified medical practitioner licensed at the place of examination and/or who is recognized by the competent authority at the place of inspection? Are the measures recorded in the DMLC-II?			
2	002/1.2.4	A/1.2.6	B/1.2.1	Does the DMLC-II specify that medical fitness examination of all seafarer candidates and serving seafarers will include the specific requirements of the Administration and have measures to ensure that this is checked before the seafarer begins work on the ship?			
2	002/1.2.5	A/1.2.4 A/1.2.7		How does the DMLC-II ensure that medical certificates will be issued in English for ships engaged in international voyages and will be valid for a maximum period of two years, except that for seafarers under the age of 18 years, the maximum period of validity will be one year, and certificates of color vision will be valid for a maximum period of six years and issued by a person recognized by the competent authority at the place of examination as qualified to issue such a certificate?			
2	002/1.2.6	A/1.2.8		How does the DMLC-II ensure that in urgent cases, a seafarer with a medical certificate that has expired within the last ninety days may be allowed to work on the ship, only if a dispensation has been obtained from the Administration. Does the shipowner have procedures to ensure that a dispensation is required in such a case?			
	002/1.2.7	A/1.2.9		How does the DMLC-II ensure that a seafarer whose medical certificate has expired while on board must obtain a medical certificate at the next port of call from a qualified medical practitioner licensed at the place of examination and/or recognized by the competent authority at the place of examination, but no later than three months from the date of expiry? Are there procedures ashore and on board to ensure this requirement?			
				DMLC Area 3, Qualifications of seafarers (Regulation 1.3)	Section where found in DMLC-II		
3	002/1.3.2	1.3.1		Does the DMLC-II state that prior to working on a ship, all seafarers will be required to be trained or certified as competent or otherwise qualified to perform their duties?			
3	002/1.3.4	1.3.3		How does the DMLC-II ensure that all Seafarers covered under STCW'78 as amended ("STCW"), including those in positions listed in the minimum safe manning certificate, before beginning work on the ship, must be trained and certified as competent, in accordance with STCW and must possess appropriate and valid Liberian certification and any additional special qualifications equivalent to the duties they are required to undertake on the ship? What procedures does the shipowner have ashore and on board to ensure this requirement?			
3	002/1.3.3	1.3.2		What are the procedures in the DMLC-II to ensure that prior to commencing duties on a ship, seafarers shall successfully complete training for personal safety, such as that contained in STCW Section A-VI/I?			
				DMLC Area 4, Seafarers' employment agreements (Regulation 2.1)			
4 c) 12 e)	003/3.1.11	A/2.1.4		Does the seafarers' employment agreement and any applicable CBA include at least the following information in MLC-003/3.1.11?			
4 c)	003/3.5.4	A/2.1.4 A/4.5		Does the seafarers' employment agreement or applicable CBA identify how the various branches of social security protection will be provided to the seafarers as well as any other relevant information at the disposal of the ship owner, such as statutory deductions from the			

				seafarers' wages and ship owners' contributions which may be made in accordance with the requirements of identified authorized bodies pursuant to relevant national social security schemes?			
					Reference to section(s) in applicable CBA		
4 c) 12 b)	005/3.1/ 3.2/3.5	A4.1.1 A/4.2 A/4.5		Please list the sections in the agreement or applicable CBA that provides for health, medical care and social security benefits in accordance with MLC-005 section 3.1, 3.2 and 3.5			
4 c)	003/3.6.1	A/2.5		Please list the sections in the agreement or applicable CBA that provides for seafarers entitlement to repatriation in accordance with MLC-003/3.6.1			
					Section where found in DMLC-II		
4 b)	003/3.1.2	A/2.1.1(a)		How does the DMLC-II ensure that prior to commencing work on a Liberian registered ship, every seafarer is required to have a Seafarers Employment Agreement signed by both the seafarer and the shipowner or a representative of the shipowner?			
4 b)	003/3.1.2	A/2.1.1(c)		Does the DMLC-II require the shipowner and the seafarer to each have a signed original of the SEA and how does the shipowner ensure that the seafarer is provided with a signed original of the agreement?			
4 b)	003/3.1.3	A/1.4.5(c) (ii) A/2.1.1(b)		How does the DMLC-II address the shipowners' duty to ensure that each seafarer shall be given an opportunity to examine and seek advice on the agreement, including any collective bargaining agreement that forms part of it, before signing, to ensure that they have freely entered into an agreement with sufficient understanding of their rights and responsibilities? (This may include a provision in the employment agreement stating that the seafarer has the opportunity to examine and seek advice on the agreement before signing)			
4 b)	003/3.1.5	A/2.1.1(d) A/2.1.2		Does the DMLC-II require that where any CBA forms all or part of the seafarers' employment agreement, such a CBA will be available on board for seafarers to review their conditions of employment?			
	003/3.1.4	A/2.1.1(d)		Does the DMLC-II require that a copy of the seafarers' employment agreement and any such CBA which forms all or part of the seafarers' employment agreement is available with the ships master and is also accessible for review by a Liberian Maritime Labour Inspector or a duly approved Recognized Organization (RO) and authorized officers in the ports to be visited?			
4 d)	002/1.3.1 003/3.1.7	A/2.1.1(e) A/2.1.3		How does the DMLC-II ensure that prior to being engaged or employed on board a ship, each seafarer is required to possess a Liberian 'Seafarers Identification and Record Book' and does the DMLC-II require that the record of employment must be entered in this document without any statement as to the quality of the seafarer's work or as to his/her wages?			
4 c)	003/3.1.8	A/2.1.5		Does the DMLC-II and seafarers employment agreement/CBA provide for a minimum notice to be given by seafarers or shipowners for early termination of the seafarers' employment agreement? (This period shall not be shorter than 7 days) (required)			
4 c)	003/3.1.9	A/2.1.6		Does the DMLC-II and the seafarers employment agreement/CBA indicate that there is a provision in accordance with Liberian Law, Article 30, for the shipowner to terminate the seafarers' employment agreement at a shorter notice than the minimum or without notice? (recommended)			

4 c)	003/3.1.10	A/2.1.6		Does the DMLC-II and seafarers employment agreement/CBA provide for the seafarer to terminate the seafarers' employment without penalty at a shorter notice than the minimum or without notice for valid compassionate or urgent reasons? (required)			
	003/3.1.11	A/2.1.7		Does the DMLC-II and seafarers employment agreement/CBA indicate that the seafarer's employment agreement shall continue to have effect while a seafarer is held captive on or off the ship as a result of acts of piracy or armed robbery against ships, regardless of whether the date fixed for its expiry has passed or either party has given notice to suspend or terminate it?			
				DMLC Area 5, Use of any licensed or certified or regulated private recruitment and placement service (Regulation 1.4)	Section where found in DMLC-II		
5	002/1.4.1	A/1.4.9		Does the DMLC-II include measures to ensure that where a seafarer recruitment and placement service ("SRPS") located in a country or territory in which MLC, 2006 does not apply, is used by a shipowner to supply seafarers to a ship, such SRPS will be audited and certified by the Administration or issued with a Letter of Acceptance from the Administration to ensure that such a service conforms to the standards set out in the Convention?			
5	002/1.4.2	A/1.4.2 A/1.4.3		Does the DMLC-II include measures to ensure that where a private SRPS located in a country which has ratified the Convention, is used by a shipowner to supply seafarers to a ship, such a SRPS will operate only in conformity with a standardized system of licensing or certification issued by the competent authority in that country?			
5	002/1.4.3	A/1.4.5(b)	B2.2.2. 4(i) B1.4.1. 2 (e)	Does the DMLC-II include measures to ensure that a private SRPS will not charge seafarers any fee for recruitment or placement or for providing employment to them, other than the cost of the seafarer obtaining a national statutory medical certificate, the national seafarer's book and a passport and the cost of obtaining any visas which will be borne by the shipowner?			
	002/1.4.4	A/1.4.5(c)(vi)		Does the DMLC-II include measures to ensure that seafarers, prior to the process of engagement, are informed about their rights under the SRPS system of protection, to compensate seafarers for monetary loss that they may incur as a result of the failure of the SRPS or relevant shipowner under the SEA to meet its obligations?			
				DMLC Area 6, Hours of work or rest (Regulation 2.3)	Section where found in DMLC-II		
6 a)	003/3.3.1 003/3.3.2	A/2.3.5(b)) A/2.3.6		Does the DMLC-II establish the minimum hours of rest which: (i) will be not less than ten (10) hours in any 24-hour period; (ii) will be not less than 77 hours in any seven-day period; and (iii) may be divided into no more than two periods, one of which shall be at least 6 hours in length, and the interval between consecutive periods of rest will not exceed 14 hours?			

6 b)	003/3.3.4	A/2.3.7		Does the DMLC-II include measures to ensure that musters, firefighting; lifeboat; security and oil-spill drills, safety & security exercises are conducted in such a manner so as to minimize the disturbance of rest periods and not to induce fatigue?			
6 a)	003/3.3.6	A/2.3.10 A/2.3.11		Does the DMLC-II require that the table of shipboard working arrangements accepted by the Administration be posted in an accessible place and contain the following information for every position on board the ship provided in English and the working language of the ship: a) position and rank of seafarer; b) the schedule of service at sea and service in port; and the minimum hours of rest?			
6 a)	003/3.3.5	A/2.3.8		How does the DMLC-II ensure that adequate compensatory rest consistent with rest requirements in any 24-hour period is provided for callouts, such as when a machinery space is unattended, during the normal hours of rest?			
6 a)	003/3.3.7	A/2.3.12		Does the DMLC-II include measures to ensure that records of rest are maintained in a standardized format accepted by the Administration in English and the working language of the ship, to allow monitoring of compliance with the requirements above?			
6 a)	003/3.3.8	A/2.3.12		Does the DMLC-II include measures to ensure that seafarers receive a copy of their records as referred to above, endorsed by the Master, or a person authorized by the Master, and by the seafarer?			
6 b)	003/3.3.10	A/2.3.13		Does the DMLC-II provide for any relevant CBA exception to the 77-hour rest in any seven-day period?			
6 b)	003/3.3.10		STCW A/VIII/ 1.9	If so, does the DMLC-II include measures to ensure that: (i) such an exception will not provide for less than 70 hours rest in any seven-day period; (ii) will not be allowed for more than two consecutive weeks; and (iii) the intervals between two periods of exceptions on board will be at least twice the duration of the exception?			
6 b)	003/3.3.11	A/2.3.13		Does the DMLC-II provide for any relevant CBA exception to the two rest periods in any 24-hour period?			
6 b)	003/3.3.11		STCW- A/VIII/ 1.9	If so, does the DMLC-II include measures to ensure that: (i) The hours of rest in any 24-hour period may be divided into no more than three periods, one of which will be at least six hours in length and neither of the other two periods will be less than one hour in length; and (ii) Exceptions to the two rest periods in any 24-hour period will not extend beyond two 24-hour periods in any 7-day period and the intervals between consecutive periods of rest will not exceed 14 hours?			
	003/3.3.12	A/2.3.13	STCW- B/VIII/ 1.3.2	Where CBA exceptions area provided to the limits of rest; Is account taken of more frequent or longer leave periods or the granting of compensatory leave for watch keeping seafarers or seafarers working on board ships on short voyages? (Recommended)			
6 b)	003/3.3.14	A/2.3.14		Does the DMLC-II include the master's right to suspend the schedule of rest and require a seafarer to perform any hours of work necessary for the immediate safety of the ship, persons on board or cargo, or for the purpose of giving assistance to other ships or persons in distress at sea?			

6 b)	003/3.3.14	A/2.3.14		If so, does the DMLC-II include measures to ensure that as soon as practicable after the normal situation has been restored; the master will ensure that any seafarers who have performed work in a scheduled rest period are provided with an adequate period of rest?			
	003/3.3.16	A/5.1.3/1 0 (b)	B/5.1.3. 2	Does the DMLC-II record what are the procedures for on-board monitoring of rest periods of the seafarers?			
6 b)	003/3.4		B/2.3.1	Where seafarers under the age of 18 years are employed on board the ship, does the DMLC-II provide for work hours and break times in accordance with Guideline B/2.3.1 and MLC-003/3.4? (Recommended)			
				DMLC Area 7, Manning levels for the ship (Regulation 2.7)	Section where found in DMLC-II		
7 a)	003/3.8.1 003/3.8.2	A/2.7.1 A/2.7.2		How does the DMLC-II address the shipowners' responsibility to ensure that the ship is manned in accordance with the Minimum Safe Manning Certificate (MSMC), with due regard to the safety, security and protection of the marine environment under all conditions, while taking into account seafarer fatigue and the particular nature and conditions of the voyage?			
7 b)	003/3.8.4	Reg.2.7.1		How does the DMLC-II ensure that through the shipboard table of working arrangements, the minimum safe manning requirements are being implemented?			
				DMLC Area 8, Accommodation (Regulation 3.1)	Section where found in DMLC-II		
				Applicability (One affirmative answer will apply to each vessel)			
8	004/1.2	A/3.1.2		a) New Ship: Ship constructed and equipped on or after the date when MLC, 2006 came into force? Has a confirmation been provided by the vessels Class Society (authorized RO) stating that the design, construction and equipment against approved drawings related to Regulation 3.1 (seafarer accommodation and recreational facilities), Regulation 3.2 (food and catering) and Regulation 4.3 (health, safety and accident prevention) comply with the Administrations national requirements implementing MLC, 2006? (Note: This confirmation is required at the time of requesting for a DMLC-I)			
8	004/1.1.2	A/3.1.2		b) Existing Ship: Ship constructed prior to the date when MLC, 2006 came into force, but was constructed and equipped to fully comply with the ILO Accommodation of Crews Convention (Revised), 1949 (No.92) and/or ILO Accommodation of Crews Convention 1970 (No.133)? (Note: The foregoing ILO Conventions shall continue to apply to the extent that these were applicable). Has an ILO 92 or ILO 92/133 Certificate of Compliance; or Inspection Report been submitted by the shipowner? (Note: This Certificate or Inspection Report is required at the time of requesting for a DMLC-I)			

8	004/1.1.3	A/3.1.2		c) Existing Ship: Ship constructed prior to the date when MLC, 2006 came into force, but was constructed or equipped to substantially comply with ILO 92 and/or 133? Has an ILO 92 or ILO 92/133 Certificate of Exemption; or Inspection Report been submitted by the shipowner? (Note: This Certificate or Inspection Report is required at the time of requesting for a DMLC-I)			
8	004/1.1.3 004/3.1 - 3.15	A/3.1.6(d) A/3.1.9(a) , (g), (h), (m) A/3.1.10(a)) A/3.1.11(b) , (e) A/3.1.1 2 A/3.1.1 5 A/3.1.2 0 A/3.1.21		Does the DMLC-I permit 'Exemptions' and/or 'Substantial Equivalents'?			
8	004/4.3.1	A/3.1.7(a)		Does the DMLC-II include procedures to ensure that sleeping rooms and mess rooms will be adequately ventilated, providing sufficiency of air movements in all climatic conditions?			
8	004/3.6.3	A/3.1.7(b)		How does the DMLC-II ensure that the air-conditioning system where installed is required to maintain the air at a satisfactory temperature & relative humidity as compared to outside air conditions?			
8	004/4.4	A/3.1.7(d)		Does the DMLC-II include procedures to ensure that the heating system where installed will maintain the temperature in the accommodation at satisfactory level under normal conditions of weather and climate likely to be met within the trade in which the ship is engaged?			
8	004/4.5	A/3.1.8		Does the DMLC-II ensure that lighting in the accommodation including sleeping rooms and mess rooms will be sufficient to enable a person with normal vision to read a standard newspaper?			
8	004/4.6.2	A/3.1.6(h)	B/3.1.12	What are the measures to ensure that the accommodation and recreational and catering facilities meet the requirements in this Convention on health and safety protection and accident prevention, with respect to preventing the risk of exposure to hazardous levels of noise and vibration and other ambient factors and chemicals on board ships, and to provide an acceptable occupational and on-board living environment for seafarers?			
8	004/4.6.2	A/3.1.6(h)	B/3.1.12 B/4.3.2 B/4.3.3	Does the DMLC-II require the limits for noise and vibration in the working and living spaces to be in conformance with the current editions of the ILO code of practice entitled 'Ambient factors in the workplace' and, where applicable the IMO "Code on noise levels on board ships"? (Recommended) If the levels of noise and vibration cannot be sufficiently reduced, what are the measures to ensure that seafarers are protected?			

8	004/4.6.3		B/4.3.2 B/4.3.3	Are there provisions to ensure that seafarers are instructed in the dangers to hearing and health of prolonged exposure to hazardous levels of noise and vibration and in the proper use of noise protection devices and equipment?			
8	004/4.6.4	A/3.1.6(h)	B/4.3.2 B/4.3.3	How is it ensured that approved hearing protection equipment shall be provided to seafarers where necessary?			
8	004/4.3.2	A/3.1.16		How does the DMLC-II address protection in mosquito infested ports, when the ventilation system requires the doors and port holes to be opened?			
8	004/4.1.1	A/3.1.9(b)		Does the DMLC-II ensure separate sleeping rooms for men and women?			
8	004/4.7.3	A/3.1.11(f)		What measures does the DMLC-II have to ensure that all wash places will be provided with running hot and cold potable water?			
8	004/4.8	A/3.1.13		Does the DMLC-II state what are the laundry facilities provided to the seafarers in an appropriately situated location?			
8	004/3.9 004/3.17	A3.1.10(b)) A/3.1.19	B/3.1.6.1	If applicable, does the DMLC-II address any fairly applied variations to facilitate seafarers having differing and distinctive religious and social practices of the seafarers as permitted by the Administration? (New ships)			
8	004/4.9	A/3.1.12 A/4.1.3		How does the DMLC-II ensure that the hospital accommodation will be used exclusively for medical purposes and the sanitary facilities, where provided, provided for the hospital will be used exclusively by the occupants of the hospital?			
8	004/4.13	A/3.1.18		Does DMLC-II address the frequency (at intervals of not more than one week) and manner of recording inspections of seafarers' accommodation spaces by or under the authority of the Master, to ensure that the accommodation is clean, decently habitable and in a good state of repair?			
8	004/4.14			Does the DMLC-II require that such records of inspection of the accommodation spaces will be maintained on board for a period of at least one year?			
				DMLC Area 9, On-board recreational facilities (Regulation 3.1)	Section where found in DMLC-II		
8	004/1.1	A/3.1.2		Is objective evidence of the vessel having being constructed to applicable Convention requirements provided? (Note: Objective evidence shall include either a confirmation from vessels' Class Society (authorized RO); an 'ILO 92 and/or 133 Crew Accommodation Certificate'; an ILO 92 and/or 133 Crew Accommodation Exemption Certificate'; or an ILO 92 and/or 133 Crew Accommodation Inspection Report)			
9	004/3.17	A/3.1.19		If applicable, Does the DMLC-II address any fairly applied variations to facilitate seafarers having differing and distinctive religious and social practices of the seafarers as permitted by the Administration? (New ships)			
9	004/4.10		B3.1.11 .4	How does the DMLC-II provide for appropriate seafarers' recreational facilities at no cost to the seafarer? (Example: through periodical recreation funds, etc.)			
9	004/3.14.1 004/4.10.1		B3.1.11 .2	Does the DMLC-II include the minimum recreational facilities that will be provided on board?			
9	004/4.10.3	A/3.1.17 Reg. 4.3 A/4.3	B\4.3	Does the DMLC-II include measures to ensure that all recreational facilities provided will satisfy the requirements on health and safety protection and accident prevention as prescribed in the MLC-005, section 3.3? (Example: through safety inspections, safety committee, etc.)			
9	004/4.11.2	A/3.1.17	B3.1.11. 4.(j)	Does the DMLC-II provide seafarers with social connectivity, such as internet access, with charges, if any, being reasonable in amount?			

9	004/4.11	A/3.1.18		Does DMLC-II address the frequency (at intervals of not more than one week) and manner of recording inspections of seafarers' recreational spaces and facilities by or under the authority of the Master, to ensure that the spaces and facilities are clean and in a good state of repair?			
9	004/4.14			Does the DMLC-II require that such records of inspection of the accommodation spaces will be maintained on board for a period of at least one year?			
				DMLC Area 10, Food and catering (Regulation 3.2)	Section where found in DMLC-II		
10 a)	004/5.1.5	A/3.2.2		Does the DMLC-II ensure that food and drinking water is provided to the seafarers free of charge?			
10 a)	004/5.1.1	A/3.2.1 A/3.2.2		How does the DMLC-II ensure that seafarers will be provided with adequate quantities of food and drinking water on board taking due regard of the number of seafarers on board, their religious requirements and cultural practices as that pertain to food, and the duration and nature of the voyage? (Example: stock control, planning, inspections, etc.)			
10 a) 10 b)	004/5.1.4	A/3.2.2(b)		Does the DMLC-II ensure that the organization and equipment of the catering department will be capable of providing the seafarers on board with varied, balanced and nutritious meals?(example: Menus, planning, mess committees, etc.)			
10 a) 10 b)	004/5.1.4 004/5.2	A/3.2.2(b)		How does the DMLC-II ensure that the catering equipment and facilities including food preparation area, galley and storerooms will be maintained in a hygienic condition? (Example: inspections, training, etc.)			
10 b)	004/5.2.2 004/5.2.3 004/5.2.4 004/5.2.5	A/3.2.2(c)		What measures does the DMLC-II include to ensure that all seafarers employed in any capacity as catering staff will be properly trained or instructed for their positions and tasks to be performed, and records available on board for review? (Example: approved course, national certificate, SQ's offered by the Administration, on-board training, etc.)			
10 b)	004/5.2.4 004/5.2.5 004/5.2.6	A/3.2.4		For ships whose prescribed manning is ten (10) or more, does the DMLC-II require all seafarers employed as ship's cooks to be in possession of either a valid approved course certificate; a valid national certificate; or for existing cooks before the Convention enters into force, an attestation from the master in accordance with the Administrations standard format?			
10 b)	004/5.2.8	A/3.2.5		If the ship is not currently carrying or is not required to carry a fully qualified cook by the Administration, by virtue of the prescribed manning of less than ten (10) seafarers or the trading pattern, does the DMLC-II require the seafarer designated to cooks duties to be trained or instructed in areas including food and personal hygiene as well as handling and storage of food on board ship? (Example: training course, on-board training, etc.)			
10 c)	004/5.4.1	A/3.2.2(a)		Does the DMLC-II have procedures to ensure that potable water storage tanks be cleaned and disinfected during dry docks and wet docks or every two years. (or more frequently if potable water test results indicate contamination) and records maintained?			
10 c)	004/5.6	A/3.2.7		Does the DMLC-II address the frequency (at intervals of not more than one week) and manner of recording inspections by or under the authority of the Master, with respect to: a) supplies of food and drinking water in relation to their quantity, nutritional value, quality and variety? b) all spaces and equipment used for the storage and handling of food and drinking water? And c) galley and other equipment for the preparation and service of meals?			

10 c)	004/5.7			Does the DMLC-II state the retention period for records of training of catering staff, cleaning of potable water storage tanks and inspections of food, water and spaces used for storing and cooking food?			
				DMLC Area 11, Health and safety and accident prevention (Regulation 4.3)	Section where found in DMLC-II		
11 b)	005/3.3.1	A/4.3.1(a)		Does the DMLC-II address the adoption and effective implementation and promotion of occupational health and safety policy?			
11 b) 11 c)	005/3.3.2	A/4.3.1(b)		Does the DMLC-II address how the shipowner will take reasonable precautions to prevent occupational accidents, injuries and diseases on board ship, including through the provision of all necessary appropriately-sized personal protective equipment and measures to reduce and prevent the risk of exposure to harmful levels of noise and vibration and other ambient factors and chemicals as well as the risk of injury or disease that may arise from the use of equipment and machinery on board ships?			
11 b)	005/3.3.3	A/4.3.1(a) A/4.3.2(a)	B/4.3.1 .1 B/4.3.8 .2 B/4.3.8 .3	How does the DMLC-II ensure the adoption, effective implementation and promotion of occupational health and safety programme taking into account the ILO code of practice entitled 'Accident prevention on board ship at sea and in port', the ILO Guidelines for implementing the occupational safety and health provisions of the Maritime Labour Convention, 2006, the MSC-MEPC.2/Circ.3 entitled 'Guidelines on the basic elements of a shipboard occupational health and safety programme', the IMO Resolution MEPC.255(84) entitled 'Casualty Investigation Code', International Guidance on eliminating shipboard harassment and bullying; or other international standards and guidelines and codes of practice for the following, but not limited to: (references may be made to the Safety management System)			
11 b)	005/3.3.3	A/4.3.1(a) A/4.3.7 A/4.3.8	B/4.3.1 .3 B/4.3.2	a) Hazard identification and risk evaluation taking account of appropriate statistical information from the shipowners' fleet and general accident and casualty statistics which may be provided by the Administration?			
11 b)	005/3.3.3	A/4.3.1(a) A/4.3.7		b) initial vessel orientation, covering shipowners' safety policy, emergency procedures, access and egress, firefighting, job hazards, and information on hazardous materials before beginning work?			
11 b)	005/3.3.3			c) Periodic health and safety training and instruction of seafarers, including bringing to their attention information concerning particular hazards?			
11 a) 11 b)	005/3.3.3	A/4.3.1(c) A/4.3.1(d)		d) Periodic safety Inspections at least once every three (3) months or more frequently if there have been substantial changes in the conditions of work?			
11 c)	005/3.3.3	A/4.3.1(d)		e) reporting and correcting hazardous conditions and unsafe practices?			
11 c)	005/3.3.3	A/4.3.1(d) A/4.3.6	B/4.3.5	f) Investigation and reporting on-board occupational accidents and injuries, while ensuring the protection of seafarers' personal data?			
11 b)	005/3.3.3	A/4.3.1(c) A/3.1.6(h)	B/4.3.1 .2 B/4.3.2 B/4.3.3	g) prevention of occupational accidents, injuries and diseases on board ship, and for continuous improvement in occupational safety and health protection, involving seafarers' representatives and all other persons concerned in their implementation, taking account of preventive measures, including engineering and design control, substitution of processes and procedures and procedures for collective and individual tasks, and the use of personal protective equipment?			

11 b)	005/3.3.3		B/4.3.1 .2	h) Fire-prevention and firefighting?			
11 b)	005/3.3.3		B/4.3.1 .2	i) Handling anchors, chains and mooring lines?			
11 b)	005/3.3.3		B/4.3.1 .2	j) The effects of drugs and alcohol abuse and dependency?			
11 b)	005/3.3.3		B/4.3.1 .4	k) Responding to accidents and emergencies?			
11 b)	005/3.3.3		B/4.3.1 .2	l) Working on deck, below deck and in machinery spaces?			
11 b)	005/3.3.3		B/4.3.1 .2	m) Work involving electrical equipment, working at heights/over side & in enclosed spaces (permit to work systems)?			
11 b)	005/3.3.3		B/4.3.1 .2	n) Safe access to ship?			
11 b)	005/3.3.3		B/4.3.1 .2	o) Safe movement about the ship?			
11 b)	005/3.3.3		B/4.3.1 .2	p) Dangerous cargo & ballast?			
11 b)	005/3.3.3		B/4.3.1 .2	q) HIV/AIDS protection and prevention? and			
11 b)	002/1.1.4 005/3.3.3	A/4.3.2(b)	B/4.3.10. 2	r) Safety and health of young seafarers under the age of 18 years engaged in hazardous work, under appropriate supervision and instruction only?			
11 b)	002/1.1.4 005/3.3.4	A/4.3.2(b)	B/4.3.10. 2	Where seafarers under the age of 18 years are employed on board, does the DMLC-II record the types of work determined by the shipowner as being potentially hazardous and likely to jeopardize the health and safety of young seafarers under the age of 18 years, and ensure that these seafarers are made aware of the restrictions?			
11 a)	005/3.3.6	A/4.3.2(d)		For ships with five or more seafarers, does the DMLC-II require a safety and health committee to be established?			
11 b)	005/3.3.6 005/3.3.7	A/4.3.2(d)		If so, does the DMLC-II address the frequency of health and safety committee meetings (at least monthly) and the duration for which the records must be maintained?			
11 a)	005/3.3.9	A/4.3.1(d)		How does the DMLC-II ensure that the issues raised at safety inspections and by the safety committee are addressed in a timely manner?			
				Does the DMLC-II ensure that the occupational health and safety programmes established by the shipowner specifies the following, including measures to ensure compliance:			
11 b)	005/3.3.10	A/4.3.2(b)		a) The duties & responsibilities of the ship owner to comply with the safety and health policy and programme?			
11 a)	005/3.3.10	A/4.3.2(c)		b) The duties & responsibilities of the master to comply with the safety and health policy and programme?			
11 a)	005/3.3.10	A/4.3.2(c)		c) The duties & responsibilities of the master or a person designated by the master, or both, to take specific responsibility for the implementation of and compliance with the ship's occupational safety and health policy and programme?			
11 b)	005/3.3.10	A/4.3.2(b)		d) The duties & responsibilities of the seafarers to comply with the safety and health policy and programme? and			

11 b)	005/3.3.10	A/4.3.2(d)		e) The authority of the appointed or elected seafarers' safety representative to participate in meetings of the safety & health committee, to have access to all parts of the ship, to participate in investigation of accidents, incidents and near-misses, to have access to all necessary documentation, including investigation reports, past reports of safety & health committee meetings?			
				DMLC Area 12, On-board medical care (Regulation 4.1)	Section where found in DMLC-II		
12 b)	005/3.1.1	A/4.1.1(a) A/4.1.1(b)		Does the DMLC-II ensure that seafarers working on board have prompt access to the necessary medicine, medical equipment and facilities for diagnosis and treatment, and to medical and occupational health protection information and expertise, which is generally comparable to that provided to workers ashore?			
12 b)	005/3.1.2 005/3.1.3 005/3.1.5	A/4.1.1(c) A/4.1.1(d) A/4.1.5		How does the DMLC-II ensure that seafarers in need of immediate medical care are given the right to visit a qualified medical doctor or dentist without delay in ports of call, where practicable? Does the DMLC-II include measures to ensure that health protection and medical care services, including essential dental care will be provided free of charge to seafarers while the seafarer is on board ship or landed in a foreign port?			
12 b)	005/3.1.4	A/4.2.1.7		Does the DMLC-II ensure that where a seafarer has died during the ship's voyage, the shipowner should facilitate the repatriation of the body or ashes in accordance with the wishes of the seafarer or their next of kin?			
	005/3.3.3 005/3.1.4	A/4.1.1(e) A/4.3.1(a) A/4.3.7		Does the DMLC-II address adopting programmes of preventive character such as health promotion and health education on board their ships? (Example: Posters, video's, on-board courses, information material, etc.)			
12 a)	005/3.1.5	A/4.1.2		Does the DMLC-II require the use of the standard medical report form accepted by the Administration, for use by the master and relevant medical personnel onshore and on-board and that the form, when completed, and its contents will be kept confidential and will only be used to facilitate the treatment of seafarers?			
12 a)	005/3.1.8 INS-001			Does the DMLC-II address the use of a medical log for recording all medical treatment on-board and onshore?			
12 c)	005/3.1.7	A/4.1.4(a)	B/4.1.1 .4	Does the DMLC-II require the ship to carry a medicine chest and medical equipment that complies with the requirements in the current edition of the WHO 'International Medical Guide for Ships' or a similar national standard bearing in mind the number of persons on board and the nature and duration of the voyage?			
12 c)	005/3.1.10		B/4.1.1 .4	Does the DMLC-II include measures to ensure that the medicines & medical equipment are to be inspected at intervals not exceeding 12 months by the designated medical officer on board or a pharmacist to ensure that the labeling, expiry dates and conditions of storage of all medicines and directions for their use are checked and all equipment functioning as required?			
	005/3.1.11	A/4.1.4b		Where applicable, for ships with 100 or more persons and ordinarily engaged on international voyages of more than 3 days' duration, how does the DMLC-II ensure that a qualified medical doctor must be carried on board?			

12 d)	005/3.1. 12	A/4.1.4 c A/4.1.3	B/4.1.1. 1 B/4.1.1. 2 B/4.1.1. 3	On ships which do not carry a medical doctor, how does the DMLC-II ensure that there will be at least one seafarer on board who is in charge of medical care and administering medicine as part of their regular duties; or at least one seafarer on board competent to provide medical first aid; and such persons will have completed the relevant training required by the STCW'78 as amended and will hold relevant valid Liberian SQC's? (Example: Checks prior to joining ship or beginning work)			
12 c)	005/3.1.13 005/3.1.14	A4.1.4(a)	B4.1.1. 4 B4.1.1. 5	Does the DMLC-II require the current edition of the WHO publication 'International Medical Guide for Ships' to be carried on board? For those ships carrying dangerous cargoes, additionally the 'Medical First Aid Guide' for use in accidents involving dangerous cargoes? and For ships carrying dangerous goods not listed in the IMDG Code, the 'Material Safety Data Sheets' available for these cargoes? Are there measures in the DMLC-II to ensure that these publications are on board and updated?			
12 d)	005/3.1.15	A4.1.4(d)	B4.1.1. 6	Does the DMLC-II ensure that a complete and up-to-date list of radio stations through which medical advice can be obtained; and if equipped with a system of satellite communication, an up-to-date and complete list of coast earth stations through which medical advice can be obtained must be carried on board? Do such publications include, but are not limited to: the current editions of the ITU publication 'List VI-List of radio determination and special service stations'; the 'Admiralty List of Radio Signals Vol.1; and the 'International Code of Signals'? (Example: a checklist of publications to be carried on board and the seafarer who is responsible for ensuring correction and updating of these publications)			
12 d)	005/3.1.16		B/4.1.1. 6	Does the DMLC-II include procedures to ensure that the seafarer's responsible for medical care or first aid care are instructed in the use of the current editions of the International Medical Guide, the International Code of Signals and the radio/satellite communication System? (Example: periodical on board training)			
				DMLC Area 13, On-board complaint procedures (Regulation 5.1.5)	Section where found in DMLC-II		
13	006/2.1.1 006/2.1.2	5.1.5 A/5.1.5.2	B/5.1.5. 1	Does the DMLC-II provide for on-board procedures in the format accepted by the Administration for the fair, effective and expeditious handling of seafarer complaints alleging breaches of the Administrations requirements implementing this Convention, including seafarers' rights?			
13	006/2.1.5	A/5.1.5.4		Does the DMLC-II provide for the seafarer to receive a copy of the on-board procedures applicable on the ship? (Example: on joining the ship or prior to departing port of engagement)			
13	006/2.1.3	A/5.1.5.2	B/5.1.5 .1	Does the DMLC-II (as well as the on-board complaint procedures) seek to resolve all complaints at the lowest level, while recognizing the seafarers right to complain directly to the master and where they consider it necessary directly to the shipowner or to Office of the Deputy Commissioner of Maritime Affairs?			
13	006/2.1.4	A/5.1.5.3	B/5.1.5 .2	Does the DMLC-II (as well as the on-board complaint procedures) address the right of the seafarer to be accompanied or represented during the complaints procedure, as well as safeguards against the possibility of victimization of seafarers for filing complaints?			

13	006/2.1.6	A/5.1.5.4	B/5.1.5.1	Does DMLC-II (as well as the on-board complaint handling procedures) require that a person or persons to be nominated, who can, on a confidential basis, provide seafarers with impartial advice on their complaint and otherwise assist them in following the complaint procedures available to them on board the ship?			
13	006/2.1.7		B/5.1.5.2	Does the DMLC-II ensure that all complaints received along with the decisions taken will be recorded and a relevant copy be given, if requested by the seafarer concerned?			
				DMLC Area 14, Payment of wages (Regulation 2.2)	Section where found in DMLC-II		
14 a)	003/3.1	A/2.1.4(j) A/2.1.2		Does the DMLC-II specify if any of the seafarers are covered by a CBA?			
14 c)	003/3.2.1	A/2.2.1		What are the procedures in the DMLC-II to ensure that Seafarer's wages will be paid in full at no greater than monthly intervals in accordance with the SEA or any applicable CBA?			
14 c)	003/3.2.3			How does the DMLC-II ensure that seafarers receive on demand, from the master the wages actually earned, less any valid deductions (payable in cash and in the currency agreed), at every intermediate port where the vessel shall load or discharge cargo before the voyage is ended, but not more than once in any fifteen-day period?			
14 a)	003/3.2.4	A/2.3.3	B/2.2.2.1(a)	Does the DMLC-II and the seafarers employment agreement/CBA state the normal working hours for seafarers which shall not be less favorable than an eight-hour day with one day of rest per week and rest on public holidays and that time worked in excess of normal working hours is to be counted as overtime?			
14 c)	003/3.2.2	A/2.2.2		Does the DMLC-II specify how or in what form will seafarers be given a monthly account of the payments due, and the amounts paid, including wages, any additional payments and any the rate of exchange used if applicable?			
14 f)	003/3.2.5		B2.2.2.1(d)	Does the DMLC-II require overtime records to be maintained at least monthly on board and endorsed by the seafarer and include measures to ensure that the records of overtime are consistent with the record of rest hours? (Example: Instruction & periodical checks by the master or department head)			
14 g)	003/3.2.7	A/2.2.3 A/2.2.4		Does the DMLC-II provide for a system to enable seafarers, at the time of entering employment or during it, to allot, if they so desire, by bank transfers or similar means, all or a proportion of their wages at regular intervals and in due time to the person or persons nominated by the seafarers? (example: Are seafarers provided with the information for making allotments on joining the ship)			
14 c)	003/3.2.9	A/2.2.5		Does the DMLC-II indicate that any charges directed to the seafarer for such transmission of wages, including the currency exchange rates will be at the prevailing market rate or the official published rate (or free of charge)?			
14 b)	003/3.2.10	A/2.2.6	B2.2.2.4(d)	Does the DMLC-II include measures to pay every seafarer, in the absence of any agreement, his wages within two days after the termination of the Articles, or at the time when the seafarer is discharged, whichever is first, and provide the seafarer with a full and true account of the wages and all deductions therein?			
	003/3.2.11	A/2.2.7		Does the DMLC-II and the seafarers employment agreement/CBA indicate that where a seafarer is held captive on or off the ship as a result of acts of piracy or armed robbery against ships, wages and other entitlements under the seafarer's employment agreement, relevant collective bargaining agreement or applicable national laws, including the remittance of any allotments as provided in Standard A2.2.4, shall continue to be paid during the entire period of			

				captivity and until the seafarer is released and duly repatriated in accordance with Standard A2.5.1 or, where the seafarer dies while in captivity, until the date of death as determined in accordance with applicable national laws or regulations?			
				DMLC Area 15, Financial security for repatriation (Regulation 2.5)	Section where found in DMLC-II		
15 a), b)	003/3.6.5	Reg. 2.5.2		Does the DMLC II require that the shipowner shall maintain financial security to ensure that seafarers are duly repatriated in the event of their abandonment?			
15 c)	003/3.6.5. 3	A/2.5.2.6		Does the DMLC II require that a copy of the certificate or other documentary evidence of financial security issued by a financial security provider acceptable to the Administration be available on board and posted in a conspicuous place, where it is available to seafarers?			
15 a)	003/3.6.5. 3			Does the DMLC II ensure that a copy of the financial security document for repatriation shall be provided to the Administration annually?			
15 e)	003/3.6.5. 5	A/2.5.2.8		Does the DMLC II provide measures to ensure that assistance provided by the financial security provider shall be granted promptly upon request made by the seafarer or the seafarers' nominated representative and supported by the necessary justification of entitlement in accordance with paragraph 3.6.5.1 of Marine Notice MLC-003?			
15 f)	003/3.6.5. 6/3.6.5.7	A/2.5.2.9		Does the DMLC II provide information to the seafarers on the cover that the financial security will provide?			
15 g)	003/3.6.5. 8	A/2.5.2.11		Does the DMLC II ensure that the shipowners' financial security will not cease before the end of the period of validity of the financial security unless the financial security provider has given prior notification of at least 30 days to the Administration?			
				DMLC Area 16, Financial security relating to shipowners' liability (Regulation 4.2)	Section where found in DMLC-II		
16 a), e)	005/3.2.2	A/4.2.1(b)		Does the DMLC II ensure that the shipowner shall maintain financial security to assure compensation to seafarers for long-term disability due to occupational injury, illness or hazard and a copy of the financial security document shall be provided to the Administration annually?			
16 h)	005/3.2.2.6	A/4.2.1.11		Does the DMLC II require that a copy of the certificate or other documentary evidence of financial security issued by a financial security provider acceptable to the Administration be available on board and posted in a conspicuous place, where it is available to seafarers?			
16 c) 16 g)	005/3.2.2. 2/3.2.2.3/ 3.2.2.5	A/4.2.1.8		Does the DMLC II ensure that the minimum amount of direct compensation set out in accordance with Liberian Maritime Regulation or the seafarers' employment agreement, whichever is greater shall be paid in full without delay and a seafarer shall not be pressurized into accepting a payment less than the contractual amount, unless where the nature of the long-term disability of a seafarer makes it difficult to assess the full compensation to which the seafarer may be entitled, then an interim payment or payments shall be made to the seafarer to avoid undue hardship?			
16 g)	005/3.2.2.5	A/4.2.1.8		Does the DMLC II provide provides for the claim for contractual compensation to be brought directly by the seafarer concerned, of their next of kin, or a representative of the seafarer or designated beneficiary?			

16 e)	005/3.2.2			Does the DMLC II ensure that a copy of the financial security document to assure compensation shall be provided to the Administration annually?			
16 j)	005/3.2.2.7 /3.2.2.8	A/4.2.1.12/ A/4.2.1.13		Does the DMLC II ensure that the financial security shall provide for the payment of all contractual claims covered by it which arise during the period for which the document is valid and it shall not cease before the end of the period of validity of the financial security, unless the financial security provider has given prior notification of at least 30 days to the Administration?			
16 k)	005/ 3.2.3.1	A/4.2.1.9		Does the DMLC II ensure that the shipowner transmits the information to the seafarers from the financial security provider when the financial security is cancelled or terminated?			